

Talent Partner Agreement

This agreement (the "Agreement") is now entered by and between FUTURE MODERN (the "Company") and the undersigned goods or services provider ("ARTIST"), (all together referred to as "the parties").

WHEREAS, the Company has developed Products (applications, databases, designs, graphics, etc) and corresponding Services as well as intends to in future (the "Products", "Products and Services") and holds ownership of all intellectual property rights in these current and future Products;

WHEREAS, the Company desires to curate, deal, sell, distribute, market, or otherwise represent ("curate") the ARTIST's artwork, assets, products, goods, services, labor, skills, know-how, and expertise ("WORK") using the Products for sales ("Sale", "Transaction"), which also may include recurring components; and

WHEREAS, the Company and the ARTIST desire to enter into an arrangement whereby the Company and ARTIST will share the profits realized from the sale of WORK(s) due to the Products and Services, and efforts of the Company according to the terms and conditions herein,

NOW, THEREFORE, in consideration of the mutual covenants and promises made by the parties hereto, the Company and the ARTIST (individually each a "Party" and collectively, the "Parties") covenant and agree as follows:

In exchange for the curation, distribution, and sale of ARTIST's WORK in a Company or online ("curation"), the parties now agree to the following:

1. The Company will present, display, or exhibit the ARTIST's WORK(s) at an exhibition at the FUTURE MODERN MUSEUM, located dually at a physical location and in the metaverse; or online on future modern's \$BUILD STORE online storefront; or online on the FUTURE MODERN SERVICES PORTAL online directory; or at any other in-person, online, or onchain venues or platforms where the Company currently presents, displays, or exhibits WORK(s) or will in the future. Before the Company places any WORK at these locations, the ARTIST will be informed and must approve the placement.

2. The WORK(s) curated, marketed, produced, presented, displayed, exhibited, and represented by future modern under this Agreement are from now on collectively referred to as the "WORK" and refer to those implemented or proposed artworks, products, services, assets, forms of media, or other WORK(s) originally rendered for sale by ARTIST, submitted by ARTIST to FUTURE MODERN, and accepted by FUTURE MODERN for curation.

3. In exchange for FUTURE MODERN's curation of ARTIST'S WORK, ARTIST grants FUTURE MODERN the right to represent ARTIST in the subsequent sale and further representation of the WORK by FUTURE MODERN.

4. **TERM:** The term of this Agreement begins when ARTIST'S WORK is submitted to FUTURE MODERN for curation. ARTIST can complete submission either electronically or by any other means. Upon written mutual agreement between FUTURE MODERN and ARTIST, any WORK that ARTIST has rendered but which is not curated by FUTURE MODERN may also become WORK to be curated by FUTURE MODERN under the terms of this Agreement.

This Agreement shall have an initial term of 2 years from its execution date, and shall continue in force from year to year after that, but only so long as such continuance is approved at least annually by both parties in writing.

5. If any Buyer is introduced to ARTIST'S WORK through FUTURE MODERN, any eventual sale resulting from that introduction shall be subject to the terms of this Agreement.

6. **COMMISSION:** The following payment terms will apply to all sales of and proceeds from each subject WORK curated by FUTURE MODERN: 85% (payment to ARTIST), 15% (commission to FUTURE MODERN). This includes but is not limited to

- any proceeds resulting from the release, distribution, or sale of WORK, including but not limited to primary or secondary sales of WORK; token airdrops; compensation deals including employment agreements, sponsorships, wages, and salaries; and prize money, perks, or bonuses;
- any tokens, shares, stake, or any form of assets, ownership, or equity retained in any partial ownership or equity sale of WORK;
- any other funds, earnings, or proceeds generated from any partial or whole ownership or equity sale of WORK as described above.

6a. If FUTURE MODERN successfully refers the ARTIST to permanent, full-time employment, then 6.) will only apply to the ARTIST's first year's earnings. A successful referral to permanent, full-time employment shall mean the ARTIST accepts a permanent full-time employment offer introduced to the ARTIST by FUTURE MODERN for which the employer did not consider the ARTIST before this agreement.

6b. BASE RATE AND BONUS MARGIN (v2 addition). The 85/15 split in Section 6 is the headline structure and is not changed. ARTIST's 85% share is composed of two components:

- **Base rate.** The guaranteed portion of ARTIST's share, paid on acceptable delivery of scoped contribution. Base rate is not contingent on performance signals beyond acceptance of the WORK itself.
- **Bonus margin.** The remainder of ARTIST's share, released based on ARTIST's real contribution to the delivered WORK as measured by FUTURE MODERN's attribution, peer-review, client-satisfaction, and MVP-score signals.

Where ARTIST's contribution meets or exceeds the scoped expectation, the full bonus margin releases to ARTIST alongside the base rate. Where ARTIST's contribution falls materially short, the unreleased portion of the bonus margin is redistributed by the platform in this priority order:

- To contributors who had to cover for ARTIST's shortfall, in proportion to the coverage they provided; and
- Where no covering contributor exists and the shortfall produced client dissatisfaction, the unreleased bonus margin — together with some or all of FUTURE MODERN's 15% commission on that WORK — is rebated to the client as a concession.

The base rate / bonus margin split for each WORK is set at engagement acceptance and is disclosed to ARTIST as part of the Statement of Work. This mechanic is not punitive: ARTIST always receives the base rate on acceptable delivery, and ARTIST always receives the portion of the bonus margin that ARTIST earned by real output. The mechanic exists so that bad actors do not collect on contributions they did not make, covering contributors are made whole, and clients on the receiving end of a shortfall get a good-faith remedy. Bonus-margin determinations are recorded on the platform and are subject to the appeal path defined in FUTURE MODERN's cooperative covenant.

By signing this document, ARTIST agrees to each stipulation outlined in this Agreement.

7. FUTURE MODERN reserves the right to determine payment terms (cash, ethereum, stablecoin, bank card, deferred or installment). For cash or bank card/credit card sales, the Company shall pay the ARTIST all proceeds due the ARTIST within thirty-one (31) days of the sale. If FUTURE MODERN accepts installment payment sales, ARTIST agrees to accept partial payments as received by FUTURE MODERN. FUTURE MODERN will not release WORK to the Buyer until the Company receives full payment. Any processing fees incurred via bank card/credit card sales will be added to the total WORK price.

8. ARTIST(s) outside the United States are responsible for any exchange rate charges or bank transfer charges. Please price WORK(s) accordingly and supply current exchange rates.

9. ARTIST retains ownership of all WORK represented by FUTURE MODERN until such WORK is sold under the terms of this Agreement or otherwise. ARTIST retains all intellectual property and copyright to all consigned WORK in perpetuity, as governed by law. FUTURE MODERN shall take the steps necessary to ensure that the ARTIST's copyright notice is projected and included in all documentation.

9a. Engagement-type IP allocation (v2 clarification). The retention of ARTIST IP under Section 9 applies to Curation Engagements — the default configuration of this Agreement, in which FUTURE MODERN represents ARTIST's own WORK. For engagement configurations outside pure Curation, the following allocation applies and shall be identified on the engagement's Statement of Work or equivalent:

- **Client-paid engagements.** Where the engagement exists to deliver work product to a paying third-party client of FUTURE MODERN, ownership of that work product vests in the paying client upon creation, on work-made-for-hire terms; to the extent it does not qualify as a work made for hire, ARTIST irrevocably assigns all right, title, and interest in the work product to FUTURE MODERN, which assigns to the client per FUTURE MODERN's client-side agreement.

- **Internal FUTURE MODERN builds.** Where the engagement is an internal FUTURE MODERN build with no external paying client, ownership vests in FUTURE MODERN upon creation, on the same work-made-for-hire / assignment terms.

- **Talent-development engagements.** Where the engagement exists to represent, promote, or develop ARTIST's own product, brand, or IP (the default Curation configuration), ownership remains with ARTIST as set out in Section 9 above.

10. The Company will establish the sales price for each WORK with approval by the ARTIST. Commissions to the Company and ARTIST must be included in the price listed for the WORK(s).

11. ARTIST shall secure a policy of general liability insurance and worker's compensation insurance applicable to its acts and omissions including, without limitation, fire, vandalism, damages, and the negligence or willful misconduct of ARTIST, its agents, representatives, invitees, and contractors, concerning ARTIST's activities, and affirms that all WORK will be covered by said insurance while in FUTURE MODERN's possession or while being transferred to the buyer. In no event shall FUTURE MODERN be liable for any injury, loss, damage, theft, or disappearance of or to property. FUTURE MODERN will make all reasonable efforts to protect WORK from accidental damage or breakage. FUTURE MODERN does not provide Insurance liability for accidental damage or breakage.

12. FUTURE MODERN will maintain backups of any digital WORK(s) via an encrypted and password-protected cloud drive. The ARTIST will supply FUTURE MODERN with the WORK files to establish a backup. FUTURE MODERN will not share backup copies of WORK with third parties. Once the specific WORK has been sold, FUTURE MODERN will verify with the ARTIST that the backup can be erased. Additional fees may apply if the ARTIST wishes to maintain backups of WORK.

13. MODIFICATIONS: All modifications of this Agreement must be in writing and signed by both parties. This Agreement constitutes the entire understanding between FUTURE MODERN and ARTIST. At least two Company officers must approve modifications by FUTURE MODERN. Modification by the ARTIST will be approved similarly.

14. PROMOTION: ARTIST grants FUTURE MODERN the right to use or publish images, descriptions, and references of their WORK(s) to its online and offline marketing channels and venues for promotional purposes. Selected entries may be included on our online Company website or other social media sites to promote the ARTIST and their WORK(s). THE PARTIES understand that the ARTIST's WORK may be photographed, diagrammed, or otherwise documented and communicated for promotional or other purposes. ARTIST will make all reasonable efforts to promote WORK, including but not limited to providing relevant images, providing relevant written references, attending strategic meetings, and attending marketing events.

15. ADDITIONAL: Please send digital WORK(s) through a reliable, easily accessible fileshare system such as ResourceSpace or Git. ARTIST(s) will ensure that any digital files shared are protected with a strong password and/or two-factor authentication. For physical WORK, please ship in sturdy, reusable containers via UPS or Fed-Ex. No wooden crates, heavy boxes, or any that need a screwdriver to open. ARTIST is responsible for any shipping costs related to refunds. ARTIST will

provide shipping information for sent WORK once available.

16. (PENDING) After selling WORK from ARTIST(s), the Company will establish a system to protect against unauthorized duplication/forgeries by third parties. We will run this system* weekly to protect ARTIST(s) from potential fraud. (* This system is based on a well-known fraud detection system that is currently implemented. Until the process is automated, manual processes will be established to supplement until automation is created/enabled for said processes.)

17. Conduct Standards (v2 addition)

ARTIST acknowledges that FUTURE MODERN's client, buyer, and partner relationships are the foundation of the business FUTURE MODERN operates and that ARTIST's conduct during any engagement reflects directly on FUTURE MODERN. During any engagement involving a third-party client, buyer, or venue introduced through or handled by FUTURE MODERN, ARTIST agrees:

(a) Client-facing communications route through FUTURE MODERN. All communications with the client, buyer, or venue — including email, chat, calls, invoices, timesheets, quotes, deposit or payment inquiries, and reply-all messages on threads that include the client — will go through or be visibly copied to the FUTURE MODERN account owner. ARTIST will not send billing, timesheets, quotes, deposit requests, or payment reminders directly to the client without prior written authorization from FUTURE MODERN.

(b) Rate and commission lock at engagement acceptance. The rate, sales price, or commission structure agreed at engagement acceptance under this Agreement (including under Section 6 and Section 10) is locked for the duration of the engagement. ARTIST will not propose, invoice, or discuss a different rate, price, or commission structure with the client. Adjustments, when needed, are handled agency-to-ARTIST per Section 13, never ARTIST-to-client.

(c) FUTURE MODERN sets commercial terms. Payment terms, deposit requirements, late-payment interest, kill fees, retainers, credit terms, and other commercial arrangements with the client are set by FUTURE MODERN. ARTIST will not propose, negotiate, or discuss such terms with clients directly.

(d) Representation of FUTURE MODERN. ARTIST will represent FUTURE MODERN as the contract of record and the delivery entity on the engagement. Public or client-facing minimization of FUTURE MODERN's role (including describing FUTURE MODERN as "just a broker," "an intermediary," or similar) is a material breach.

(e) Engagement economics confidential to the client. ARTIST's proceeds, FUTURE MODERN's commission or markup, and the client's total contract value are not disclosed to the client. ARTIST may discuss rates with other artists and contractors; FUTURE MODERN operates labor-first and supports cross-ARTIST transparency. Client disclosure remains prohibited.

Consequence. Any single material breach of subsections (a) through (e) is grounds for FUTURE MODERN, at its sole discretion, to (i) issue a written notice of concern, (ii) apply a compliance penalty on the platform record, (iii) withhold or forfeit any unearned bonus or holdback, and/or (iv) terminate

the engagement effective immediately without further compensation for services not yet performed. Repeated breach ends the engagement without further notice.

Equity Options.

1. If the ARTIST remains active for at least 6 months, according to a threshold of activity defined solely by the Company, the Company currently intends to consider them for member equity stake in the Company. This will require the ARTIST to fulfill the requirements of membership. Find membership requirements in the member artist letter of intent. Equity information can be found via the future modern equity structure.

Confidentiality, Non-Competition, and Non-Circumvention.

The parties shall not, without the advanced written consent of the other party, in any fashion, form, or manner, either directly or indirectly:

- Disclose or communicate to any third party any information relating to the Company's business or the Products including (but not limited to) customer lists, price points, or marketing plans (the "Confidential Information");
- Duplicate any Confidential information;
- Use any Confidential Information other than solely for the benefit of the other party; or; assist a third party in using any Confidential Information in any manner but solely for the other party's benefit.
- Encourage, solicit or induce, or in any manner attempt to solicit or induce, any individual or entity revealed to be employed by, as an agent of, or a service provider to, the other party to terminate such person's employment, agency or service, as the case may be, with the other party.
- Engage in Competition with the other party by soliciting business of the type performed by the Company, which the party did not engage in before the AGREEMENT, especially from any individual or entity for whom the party prospected, or provided services or products for the term of this executed agreement;
- Resell any form of media deemed WORK under contract currently managed by the parties;
- Directly or indirectly, contact, deal with, or otherwise become involved with any entity or any other entities or parties introduced, directly or indirectly, by or through the other party, its officers, directors, agents, or associates, to avoid the payment to the other party of profits, fees or otherwise. If such circumvention shall occur the party shall be entitled to any commissions due under this agreement or relating to such transaction.

Period (v2 addition). The obligations in the four bullets above covering solicitation-of-personnel, competition, resale, and circumvention shall apply for the term of this Agreement and for twenty-four (24) months after its conclusion. For engagements identified in the Statement of Work as **contract-to-hire** arrangements — where direct handoff of ARTIST to the client is the intended outcome of the engagement — the post-Agreement period is twelve (12) months instead. A client, buyer, or venue who independently and unprompted contacts ARTIST is not a violation, provided ARTIST notifies FUTURE MODERN promptly and routes the work through FUTURE MODERN if it proceeds.

By signing the below, the parties involved indicate their full understanding of the above. Any further clarification required by the ARTIST must be addressed before signing. Upon signing the below, the ARTIST agrees to the terms outlined above, including any requested further clarification/modifications, if need be. Any potential circumvention performed by reinterpretation of the above text will result in the nullification of the contract between the Company and the ARTIST/the Signee.

By (FUTURE MODERN): {{fm_signature_field}} **Printed Name:** Jamar McCarthy **Title:** Co-Founder, FUTURE MODERN **Date:** {{fm_signature_date}}

Accepted and Agreed to by:

By (ARTIST): {{artist_signature_field}} **Printed Name:** {{artist_full_name}} **Title:** {{artist_title}} **Date:** {{artist_signature_date}}